



REQUEST FOR PROPOSAL

AGRA-NB-1346

CONSULTANCY FOR THE DEVELOPMENT AND IMPLEMENTATION OF THE INTEGRATED YOUTH ENTREPRENEURSHIP IN AGRICULTURE DIGITAL PLATFORM.

Disclaimer: AGRA reserves the right to determine the structure of the process, number of short-listed participants, the right to withdraw from the proposal process, the right to change this timetable at any time without notice and reserves the right to withdraw this tender at any time, without prior notice and without liability to compensate and/or reimburse any party



/2025

RFP AGRA-NB-1346

Submit your response to the following contact.

Company **Alliance for a Green Revolution in Africa (AGRA)**
Buyer **AGRA**
Location **West End Towers, 4th Floor, Kanjata Road, Muthangari Drive, Waiyaki Way
Kanjata Road, off Muthangari Drive, Off Waiyaki Way
P.O. Box 66773
Nairobi**
Phone
Fax
E-mail **Procurement@agra.org**

When submitting your response, include the following information.

Your Company Name	
Company Site <i>(Optional)</i>	
Address	
Contact Details	
Response Valid Until <i>(Optional)</i>	

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1 Overview

1.1 General Information

Title	Youth Entrepreneurship in Agricultural Digital Platform		
Synopsis	Consultancy for the development and implementation of the Youth Entrepreneurship in Agricultural Digital Platform.		
Buyer	AGRA	Outcome	Consultancy Services Agreement
E-Mail	Procurement@agra.org	Two Stage Evaluation	Yes
Introduction			

AGRA is a proudly African-led institution focused on scaling agricultural innovations that help smallholder farmers towards increased incomes, better livelihoods, and improved food security. We understand that African farmers need uniquely African solutions to the environmental and agricultural challenges they face, enabling them to sustainably boost production and gain access to rapidly growing agricultural markets. In short, AGRA's mission is to transform the lives of smallholder farmers from that of a solitary struggle for survival to a business that thrives.

Since 2006, we have worked with our partners, governments, non-governmental organizations, private sector businesses, and more; to deliver a set of proven solutions to smallholder farmers and indigenous African agricultural enterprises. We put smallholder farmers first on the agenda, recognizing that no country has moved from low income to middle income without agricultural transformation.

For more information about AGRA, please visit www.agra.org

This is a two stage negotiation and all responses will be evaluated in two stages.

1.2 Schedule

Preview Date		Open Date	2025/07/03 3:38 PM
Close Date	2025/07/24 5:00 PM	Award Date	
Time Zone	Eastern African Time		

1.3 Negotiation Controls

Response Visibility **Sealed**

Lines Settings

Rank Indicator **1,2,3...**
Ranking Method **Multiattribute scoring**

1.4 Response Rules

This negotiation is governed by all the rules displayed below.

	Rule
☒	Negotiation is restricted to invited suppliers
☒	Suppliers are required to respond with full quantity on each line

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	Rule
☒	Suppliers are allowed to revise their submitted response

1.5 Terms

Payment Terms	Freight Terms
Shipping Method	FOB
Negotiation Currency USD (US Dollar)	Price Precision 2

1.6 Attachments

File Name or URL	Type	Description
RFP AGRA-NB-1346 - YOUTH ENTRP	File	
Annex 1 - FIRM- TECHNICAL PROP	File	
Annex 2 - FIRM- FINANCIAL PROP	File	
Annex 3 - Partners-Code-of-Con	File	
Annex 4 - KE Consultancy Agree	File	
Annex 5 - BRD - Detailed Funct	File	



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2 Requirements

**Response is required*

1. Application Submission Requirements

a) Technical Proposal

Interested and qualified firms are invited to submit their proposal(s) comprising of the following elements:

- i. Company profile, Certifications and accreditations.
- ii. Proposed Methodology, approach and workplan with clear timelines.
- iii. Detailed reference list indicating the scope and magnitude of similar assignments carried out including the client, dates and budget.
- iv. Proposed key staff, their roles including their CVs, academic and professional certificates.
- v. A detailed response to our software functional and technical requirements.

b) Financial Proposal

- i. Bidder shall indicate on oracle (under "Lines" section) the total applicable fees for carrying out the assignment. These shall include the sum of professional fees, reimbursements if applicable, and applicable taxes.
- ii. The detailed financial proposal shall be attached on the system and should include the professional fees, reimbursements if applicable, and applicable taxes. Reimbursable expenses will be reimbursed based on actual cost incurred and upon submission of receipts.
- iii. If the financial proposal is silent on taxes, AGRA shall assume that these are inclusive.
- iv. Prices must be quoted in USD (\$). Contracting will be as per bidder's bank account currency at the prevailing average exchange rate at bid Submission Deadline.
- v. Exchange rate will be as per The Central Bank of Kenya or another country as applicable.
- vi. Please note that the oracle system will seal the financial proposals (professional fees, reimbursements if applicable, and applicable taxes) until the technical evaluation is completed.

vii. All communications regarding the RFP should be directed to procurement@agr.org.

2. Guidelines for Preparations and Submission of Proposals

- a. The Proposals shall be prepared in English Language.
- b. The proposals SHALL be submitted via oracle system by the deadline indicated in the system.
- c. VALIDITY of the proposal shall be for a period of 90 days from the date of bid closure.
- d. The detailed financial proposal (professional fees, reimbursements if applicable, and applicable taxes) for the entire assignment shall be uploaded under lines section.

2.1 Section 1. Technical Proposal (Technical)

***1. Technical Proposal**

Interested and qualified firms are invited to submit their proposal(s) comprising of the following elements:

- i. Company profile, Certifications and accreditations.
- ii. Proposed Methodology, approach and workplan with clear timelines.
- iii. Detailed reference list indicating the scope and magnitude of similar assignments carried out including the client, dates and budget.
- iv. Proposed key staff, their roles including their CVs, academic and professional certificates.

- v. A detailed response to our software functional and technical requirements.

Select all that apply:

- ☐ a. Technical Proposal (*Response attachments are required*)

3 Lines

Instructions

Please note that the oracle system will seal the financial proposals (professional fees, reimbursements if applicable, and applicable taxes) until the technical evaluation is completed.

3.1 Line Information

Line	Target Quantity	Response Quantity	Response Price	Line Amount	Promised Date
1-Consultancy for the development and implementation of the Youth Entrepreneurship in Agricultural Digital Platform.					

3.2 Line Details

3.2.1 Line 1 Consultancy for the development and implementation of the Youth Entrepreneurship in Agricultural Digital Platform.

Category Name **Professional Fees**
 Allow Alternate Lines **No**
 Requested Date **2027/07/31**

Location **West End Towers, 4th Floor, Kanjata Road, Muthangari Drive, Waiyaki Way Kanjata Road, off Muthangari Drive, Off Waiyaki Way P.O. Box 66773 Nairobi**

Start Price (USD)

Contract Terms and Conditions

AGREEMENT FOR PROVISION OF CONSULTANCY SERVICES

_____ Qty:_____ Price:_____

This Agreement, dated _____ is made BETWEEN

a) ALLIANCE FOR A GREEN REVOLUTION IN AFRICA, a not-for-profit corporation registered under the Laws of the State of Washington in the United States of America and having an office and place of business in Kenya at West End Towers, 4th Floor; Kanjata Road, off Muthangari Drive, Off Waiyaki Way and P.O. Box 66773 Westlands 00800, Nairobi - Kenya ("AGRA" which expression shall where the context so admit include all its affiliates, successors and assignees) of the one part; and

b) having an office and place of business at and whose address is and..
.....(the "Consultant" which expression shall where the context so admit include all **its affiliates, successors and assignees or his or her affiliates and personal representatives**) of the other part.

1. Preamble

1.1 AGRA is an African-led alliance focused on putting smallholder farmers at the center of the continent's growing economy by transforming agriculture from a solitary struggle to survive into farming as a business that thrives. Founded in 2006, at a time when agricultural development was emerging from a 20-year decline characterized by minimal growth and investment in the sector, AGRA's mission is to catalyze and sustain an agricultural transformation in Africa through innovation-driven productivity increases and access to markets and finance that improve the livelihoods of smallholder farmers.

1.2 Through this Agreement, AGRA has engaged the Consultant to... The Consultant shall submit reports to AGRA's ..., (Email: ...) (the "Contract Supervisor").

In consideration of mutual promises and covenants in the Agreement, the Parties agree as follows:

2. Definitions

- a) **"Agreement"** means the (i) terms and conditions contained in this Agreement; (ii) Terms of Reference (ToR) under *Annex 1*; (iii) Consultant's Technical Proposal under *Annex 2*; and (iv) Consultant's Financial Proposal under *Annex 3*. In the event of any conflict or ambiguity between the terms and conditions in this Agreement and the Annexures, the terms of this Agreement shall prevail.
- b) **"Commencement Date"** means
- c) **"Confidential information"** means all information which may be imparted in confidence or be of a confidential nature relating to the business or prospective business, current or projected plans or internal affairs of AGRA and, in particular, but not limited to all Know-how, Marketing Information, trade secrets, unpublished information relating to AGRA's intellectual property and any other commercial, financial or technical information relating to the affairs and management of AGRA or to any grant beneficiary, or potential grant beneficiary or donor or potential donor, licensee, officer or employee of AGRA.

- d) **"Contract Period"** means the period between and
- e) **"Personnel"** means officers, employees or agents of the Consultant.
- f) **"Services"** means the variety of tasks listed under clause 3.1 on Scope of Services.
- g) **"Work"** means all written work or other materials of any nature created by the Consultant under this Agreement.

3. Scope of Services

3.1 The Consultant is expected to carry out the following Services:

- i.
- ii.
- iii.
- iv.
- v.

3.2 The Consultant shall submit to the Contract Supervisor, for AGRA's approval, the deliverables or reports set out in the schedule below. All deliverables or reports shall meet generally accepted professional standards based on AGRA's sole opinion and determination.

No.	Deliverables	Due Date

3.3 The Consultant agrees that time is of the essence with respect to all dates and periods mentioned in this Agreement.

4. Time Frame and Fees

4.1. In consideration of and subject to satisfactory performance and conditions under this Agreement, AGRA shall pay the Consultant a consultancy fee not exceeding United States Dollars/ Kenya Shillings (USD/KES.....) (the "Consultancy Fees") constituted as follows:

#	Description	Value (USD/KES)
i.	Amount payable to Consultant - LESS withheld Tax(es)	
ii.	Withholding Tax ¹	
iii.	Value Added Tax ²	
iv.	Out of Pocket Expense ³	
	Total cost	

Notes

1.AGRA shall withhold this amount as per Law. A Withholding Tax certificate shall be provided to the Consultant in lieu of this amount.

2. AGRA is VAT exempt and shall provide the Consultant with a VAT exempt certificate in lieu of this amount and as further described under Clause 5.2 of this Agreement.

3This is an allocation spelling out the maximum expense allowed. Reimbursement shall only be made where expense supporting documents are provided. The following are the reimbursable expense items and their limit.

#	Type of Reimbursable Expenses
	Total cost

4.2 The Consultant shall invoice AGRA upon completion of any Service requested by AGRA. The invoice shall document the deliverables provided, the time and expenses spent under this Agreement. or:

4.2 AGRA shall pay the fees and expenses incurred under this Agreement as a lump sum, upon satisfactory completion of the Services and upon receipt of the payment from the Consultant documenting time and expenses spent under this Agreement; or

4.2 The Consultancy Fees shall be payable in the following instalments, subject to approval by AGRA of the deliverables; or

No.	Report Name

4.2 The Consultancy Fees shall be payable monthly at the rate of [INSERT MONTHLY FEE] United States Dollars (US \$) per month.

4.3 Payments to the Consultant shall be made in United States Dollars (US \$). Payments shall be made to the Consultant's Bank Account whose details are as follows:

Account Name:

Account Number:

Name of the Bank:

Country of Bank:

Name of the Bank Branch:

Bank Account Currency:

SWIFT Code:

Branch Code

IBAN Number (mandatory for Europe):

Sort Code/ ABA or Routing No. respectively (Mandatory for UK/US):

4.4 The Consultant hereby agrees that the Consultancy Fees is inclusive of any applicable expenses related to the delivery of the Services under this Agreement including but not limited to travel, accommodation, meals and miscellaneous expenses.

4.5 Settlement of the invoice submitted by the Consultant shall be subject to satisfactory approval of the Services by AGRA and full submission of the Payment Documents.

4.6 All Payment Documents must be electronically submitted to invoices@agra.org, the Contract Supervisor and on AGRA's Procurement Oracle system. Payment shall be made within thirty (30) days of receipt of the Payment Documents from the Consultant and upon approval of the deliverables by AGRA.

5. Taxes

5.1. AGRA shall withhold such percentage of the Fees as the law may prescribe from time to time as Withholding Tax in which case it shall provide the Consultant with a Withholding Tax Certificate.

5.2. The Consultant confirms that it has provided AGRA with a Tax Compliance Certificate which is valid for the Contract Period at the Commencement Date of this Agreement.

5.3. AGRA is exempt from VAT. The Consultant shall therefore be required to have submitted all the Payment Documents as at the invoice date to enable AGRA obtain a valid VAT exemption certificate from the relevant authorities. The Consultant shall be liable for any failure and/ or delay in providing the Payment Documents which results in AGRA's non-enjoyment of its VAT exempt status.

6. Consultant's Warranties and Indemnities

6.1. The Consultant warrants that **he/she/it** has the requisite skill, knowledge and authority to perform the Services and shall perform the Services in accordance with the highest professional standards.

6.2. The Consultant agrees that all Payment Documents and reports rendered to AGRA shall properly reflect all the information related to the activities and transactions handled by the Consultant under this Agreement, which information may be relied upon as being complete and accurate in any further recordings and reporting made by AGRA for whatever purpose.

6.3. The Consultant warrants and represents to AGRA that **he/she/it** is an independent contractor. Nothing in this Agreement shall render the Consultant an employee, agent or partner of AGRA and the Consultant shall not hold himself/herself/itself out as such.

6.4. The Consultant warrants to AGRA that by entering into this Agreement and performing the Services **he/she/it** shall not be in breach of any contract or other obligation and shall comply with all applicable laws.

6.5. The Consultant warrants that the Work does not and shall not contain any matter that is obscene or libelous, in violation of any copyright, trademark, proprietary right, or personal right of any third party, or otherwise violate any law and that **he/she/it** is free to provide the Services under this Agreement and are not bound by any agreement that restricts the performance of the Services under this Agreement.

6.6. If for any reason beyond the reasonable control of the Consultant, it becomes necessary to replace any of **his/her/its** personnel, the Consultant shall provide a replacement as soon as reasonably possible, and the Consultant shall have no claim for additional costs arising out of or incidental to any removal and/or replacement of such personnel.

7. Indemnity

7.1 Without prejudice to any other remedy, if any part of the Services is not performed in accordance with this Agreement, then AGRA shall be entitled where appropriate to:

7.1.1 require the Consultant to promptly re-perform or replace the relevant part of the Services without any additional cost or charge to AGRA;

7.1.2 assess the cost of remedying the failure (the "Assessed Cost") and deduct from any sums due to the Consultant the Assessed Cost for the period that such failure continues;

7.1.3 engage another person or organization to carry out the Services, in whole or in part, and all additional expenditure properly incurred by AGRA in having such services carried out shall be recoverable by AGRA from the Consultant;

7.1.4 in whole or in part, decline to approve any request for payment hereunder, withhold or offset against any payment or, due to subsequently discovered evidence or inspection, nullify any payment previously made to such extent as may be necessary, in AGRA's reasonable opinion, to protect AGRA from loss due to the Consultant's failure to meet **his/her/its** obligations hereunder. If, through subsequently discovered evidence or subsequent observations, AGRA becomes aware that it could have withheld approval and payment (but did not), AGRA reserves the right to deduct the applicable amount from later invoices or obtain a credit from Consultant for the applicable amount. The provisions of this clause shall not lessen or diminish, but shall be in addition to, all other remedies available to AGRA. The Consultant shall be liable for and shall indemnify AGRA in full against any expense, liability, loss, claim or proceedings arising out of any breach by the Consultant or **his/her/its** officers, employees or agents of **his/her/its** obligations under this Agreement or **his/her/its** negligence or otherwise resulting from any action or lack of action on the part of the Consultant.

7.2 All property of the Consultant or **his/her/its** officers, employees or agents whilst on AGRA's premises shall be there at the risk of the Consultant and AGRA shall accept no liability for any loss or damage howsoever occurring to it.

7.3 The Consultant shall indemnify AGRA against any liability, assessment or claim made by any relevant authorities arising out of the performance by the Parties of their obligations under this Agreement and any costs, expenses, penalty fine or interest incurred or payable by AGRA in connection with any such assessment or claim.

8. Insurance

The Consultant shall at their own expense at all times maintain with reputable insurers such insurance as may be necessary to cover any liability which the Consultant may incur in respect of any injury, loss or damage which may occur to any person as a consequence of performance of their duties hereunder except where such damage loss or injury is occasioned by the negligence or wilful default of AGRA

9. Confidentiality

9.1 The Consultant acknowledges that in the course of dealing with AGRA pursuant to this Agreement, they shall come across Confidential Information, disclosure or use of which might result in damage or loss to the business or affairs of AGRA.

9.2 The Consultant shall not disclose any Confidential Information without the prior written consent of AGRA unless such information is already in the public domain or if the Consultant is required by law to disclose such information.

9.3 The Consultant shall ensure that all their Personnel abide by the provisions on confidentiality as set out in this Agreement.

9.4 The provisions of this clause shall survive the termination of this Agreement.

10.

Intellectual

Property

10.1 By signing and returning a copy of this Agreement, the Consultant acknowledges and agrees that all Work or other materials of any nature created by the Consultant under this Agreement (the "Work") shall be deemed specially ordered and commissioned as "works made for hire" under Kenya copyright laws. Accordingly, AGRA is the author of the Work for all purposes and shall forever own all worldwide rights, title and interest in the Work, including copyright and all other proprietary rights. If the Work or any part of it is determined not to be a work made for hire, then, as of the date of this Agreement or the date of creation, whichever is earlier, and without further consideration, the Consultant assigns irrevocably to AGRA all worldwide rights in the Work, including all copyrights and renewals and extensions of them and all other proprietary rights arising under the laws of the United States or of any other country or under any treaty, convention, or proclamation.

10.2 The Consultant agrees to execute and deliver to AGRA any documents that AGRA deems necessary for AGRA to perfect, confirm or register its rights in the Work. The Consultant waives all rights generally known as "moral rights" in the Work under any present or future law, to the extent they can be waived under any applicable law, and the Consultant understands that AGRA, its licensees and assigns may edit, modify, or adapt the Work, use the Work in combination with other materials and create derivative works based on the work.

10.3 Cooperation. During and after the Contract Period, on AGRA's reasonable request, the Consultant shall provide all assistance necessary and desirable for the Consultant to establish, preserve, and enforce its rights, title, and interest in and to the Work.

10.4 Moral Rights: The Consultant waives all rights generally known as "moral rights" in the Work under any present or future law, to the extent they can be waived under any applicable law, and the Consultant understands that AGRA, its licensees and assigns may edit, modify, or adapt the Work, use the Work in combination with other materials and create derivative works based on the Work.

10.5 Utilization of the Work: As AGRA is the owner of the Work, the Consultant agrees that he/she/it cannot utilize, share and present the work to any third parties without AGRA's written consent. The Consultant further warrants that he/she/it shall not use any part of the Work for his/her/its own benefit, promotional or for branding purposes without written permission from AGRA.

11. Use and Protection of Personal Data

In order to fulfil its obligations under this Agreement, the Consultant may during the course of providing the Services, receive and process personal data, including but not limited to, names, contact information and other similar information ("Personal Data"). The Consultant agrees to (i) safeguard Personal Data in accordance with AGRA's Data Protection Policy available at <https://agra.org/wp-content/uploads/2021/10/AGRA-Data-Protection-Policy.pdf>, which may be modified from time to time; and in accordance with all other applicable data protection laws (ii) implement and maintain a comprehensive secure process that contains appropriate security measures to safeguard the Personal Data that the Consultant receives, stores, maintains, processes or otherwise accesses in connection with the provision of Services (iii) store the Personal Data as long as such data is necessary for the performance of this Agreement.

12. Expiration

The Agreement shall terminate on satisfactory completion of the Services outlined in clause 3 above, or upon termination by either Party pursuant to the terms of this Agreement.

13.

Breach

of

this

Agreement

13.1. If either Party breaches any provision or term of this Agreement, all of which shall be deemed to be material and such Party fails to remedy such breach within five (5) days of receipt of written notice requiring it to do so, the aggrieved Party shall be entitled, without notice and in addition to any remedy available to it in law or under this Agreement, to:

- a) terminate this Agreement; or
- b) to claim specific performance with or without damages.

14. Termination

14.1. Either Party can terminate the Agreement by giving fourteen (14) days' written notice to the other Party, or earlier if agreed by both Parties.

14.2. AGRA may by written notice summarily terminate this Agreement with immediate effect if:

- a) the Consultant breaches any term of this Agreement which, in the case of a breach capable of remedy, is not remedied by the Consultant within five (5) days of a written notice from AGRA specifying the breach and requiring its remedy;
- b) the Consultant becomes insolvent; or
- c) the personnel of the Consultant conduct themselves in any manner which in AGRA's reasonable opinion, brings or is likely to bring AGRA into disrepute.

14.3. In the event of this Agreement being concluded whether by expiry of the Contract Period, breach or otherwise:

- a) AGRA shall pay to the Consultant the outstanding fee, or a portion thereof based in the sole opinion and determination of AGRA, on the satisfactory level and/ or standard of completion of the Services;
- b) the Consultant shall promptly return to AGRA any materials, whether or not complete, produced in connection with the Services and all materials and information it received from AGRA regardless of the medium in which they are fixed, including all copies of them; and
- c) AGRA shall be entitled to take any further action and seek further remedies against the Consultant in order to protect its rights and/or interests arising out of this Agreement.

15. Failure to Reach Agreement

Where it is specified in this Agreement that certain matters are to be agreed between the Parties, failure to reach an agreement in respect of such matters shall not affect the validity and enforce-ability of the whole or any part of this Agreement.

16. Dispute Resolution

The Parties shall attempt to settle amicably any claim, controversy or dispute that may arise in the interpretation of this Agreement. In the event that any claim, controversy or dispute cannot be resolved amicably within twenty (20) days from the date of such claim, controversy or dispute has occurred, then the claim, controversy or dispute, as the case may be, shall be exclusively referred to a single arbitrator to be agreed between the parties or failing agreement to be appointed by the Chairperson of the Chartered Institute of Arbitrators (Kenya Branch) and the provisions of the Arbitration Act No. 4 of 1995 of the Laws of Kenya or of any enactment amending or replacing the same shall apply. Such decision of the Arbitrator appointed herein shall be binding to the extent permissible by law. The Parties may however appeal against the decision of an arbitrator(s) on any point of law or fact.

17. Relationship of the Parties

17.1 This Agreement shall not constitute or imply any partnership, consortium, association, joint venture, agency, fiduciary relationship or other relationship between AGRA and the Consultant other than the contractual relationship expressly provided for in this Agreement.

17.2 Nothing contained in this Agreement shall be deemed or construed to create an employment relationship between the Consultant and AGRA. The Consultant shall neither have nor enjoy any rights whatsoever against AGRA as an employee under the employment laws in force in Kenya.

18. Cession and Assignment

18.1. Neither the benefit nor the burden of this Agreement may be assigned or sub-contracted in whole or in part by the Consultant without the prior written consent of AGRA. Such consent may be given subject to any conditions which AGRA considers necessary. AGRA may withdraw its consent to any sub-contractor where it no longer has reasonable grounds to approve of the sub-contractor or the sub-contracting arrangement and where these grounds have been presented in writing to the Consultant.

18.2. The Consultant or, where applicable his/her/its lawful assignees, shall at all times remain responsible for the proper performance of the Services under this Agreement and fulfillment of his/her/its obligations and for all the acts and omissions of his/her/its sub-contractors in connection with this Agreement.

19. Amendment

19.1. This Agreement constitutes the sole agreement between the Parties. No Party shall be entitled to rely upon any term, warranty or representation unless it is contained herein. The Parties acknowledge that no Party or its agents has made any representations not contained herein.

19.2. No waiver alteration variation or addition to this Agreement shall be effective unless made in writing and executed by both Parties in the same manner as this Agreement.

19.3. No extension of time or waiver or relaxation of any of the provisions or terms of this Agreement shall operate as an estoppel against any Party in respect of its rights in terms of this Agreement, nor shall it operate so as to preclude such Party thereafter from exercising its rights strictly in accordance with this Agreement.

20. Applicable Law

This Agreement shall be construed and governed in accordance with the laws of Kenya.

21. Anti-Corruption and Conflict of Interest

21.1 The Consultant shall not and shall ensure that his/her/its officers, employees, agents and sub-contractors shall not, pay any commission, fees or grant any rebates to any employee, officer or agent of AGRA nor favor any employee, officer or agent of AGRA with gifts or entertainment of significant cost of value nor enter into any business arrangement with employees, officers or agents other than the authorized representative of AGRA, without AGRA's prior written approval. AGRA shall have the right to audit any and all such records necessary to confirm compliance with this clause at any time during performance of this Agreement and during the TWO (2) year period following completion of the performance.

21.2 Where the Consultant as part of the Services has the responsibility of advising AGRA on the procurement of goods, works or services, the Consultant shall comply with AGRA's procurement guidelines and shall at all times exercise such responsibility in the best interests of AGRA. Any discounts or commissions obtained by the Consultant in the exercise of such procurement shall be for the account of AGRA.

21.3 Breach of this clause 21 shall entitle AGRA to terminate this Agreement and any other contracts (if applicable) between the Consultant and AGRA or take any other corrective action

22. Sexual Harassment Policy

22.1 AGRA is committed to providing a conducive work environment that is free from any form of harassment including sexual harassment. AGRA applies a zero-tolerance policy against any verbal or physical conduct by any employee either on or off premises that harasses, disrupts, or interferes with another employee's work performance or that creates an intimidating, offensive, or a hostile environment or which intimidates any third parties that AGRA deals with. No form of inappropriate sexual conduct shall be tolerated or condoned.

22.2 In the event that the Consultant sees or hears of any incident of sexual harassment or his/her/its personnel are subjected to any offensive conduct, the Consultant shall make a confidential report of the matter in writing to AGRA through the whistleblowing mechanisms provided under clause 25 below.

22.3 The Consultant shall endeavor to safeguard against sexual harassment and shall take prompt and appropriate measures to demonstrate that sexual harassment shall not be tolerated by any of his/her/its employees, agents or representatives.

23. Ethics and Safeguarding Requirements

23.1 AGRA is committed to upholding high ethical standards in its day-to-day operations as outlined in its Ethics Policy available at <https://agra.org/wp-content/uploads/2019/06/AGRA-ETHICS-POLICY.pdf>. AGRA expects all its partners including the Consultant and his/her/its respective subcontractors (if any) shall adhere to equally high standards.

23.2 In addition, AGRA is committed to the protection and safeguarding of children and vulnerable adults as outlined in its Safeguarding of Vulnerable Persons Policy available at <https://agra.org/wp-content/uploads/2019/06/AGRA-Safeguarding-of-Vulnerable-persons-Policy-.pdf>. The Consultant is expected to take all reasonable steps to ensure the safeguarding of Vulnerable Persons that are directly served by the Consultant and/or the assignment under this Agreement and immediately report to AGRA any concerns or breach of AGRA's Safeguarding of Vulnerable Persons Policy that may occur or are likely to occur.

23.3 By signing this Agreement, the Consultant declares to comply with AGRA's Partners' Code of Conduct available at <https://agra.org/wp-content/uploads/2019/06/Partners-Code-of-Conduct-.pdf> and shall provide AGRA with a duly signed copy of the Code confirming his/her/its commitment to the principles set out therein.

23.4 Any breach of the obligations set out under the Partners' Code of Conduct by the Consultant shall be considered a material breach of this Agreement.

23.5 The Consultant shall immediately notify AGRA of any violations of its Ethics Policy and Safeguarding of Vulnerable Persons Policy upon becoming aware of the violation through the whistleblowing mechanisms provided under clause 25 below.

24. Environmental, Social, Health and Safety Compliance

24.1 AGRA is committed to avoiding or mitigating any adverse Environmental and Social impacts in its interventions. The Consultant is therefore required to carry out their

business and operations in compliance with all applicable national and international environmental, occupational health & safety and social laws and regulations that apply to its business. In addition, the Consultant shall obtain, maintain, and keep updated any applicable permits and registrations.

- 24.2 The Consultant, where applicable, shall also be expected to demonstrate that they have put in place measures to prevent pollution, waste reduction, and implement environmentally sound management of all substances that could cause negative environmental or public health effects if not properly managed.
- 24.3 In addition, AGRA has developed an Environmental and Social Management Policy which underpins its resolve to reduce or avoid negative Environmental and Social impacts as a result of its work. By signing this Agreement, the Consultant agrees, where applicable, to comply with the terms and principles set out in AGRA's Environmental and Social Management Policy available at https://agra.org/wp-content/uploads/2020/07/Environmental-Social-Management-System_v4.pdf.

25. Whistleblower Policy

- 25.1 AGRA has zero tolerance towards fraud, corruption, bribery and any malpractice or wrongdoing as outlined in the Whistleblower Policy available at <https://agra.org/wp-content/uploads/2020/04/Whistleblower-Policy.pdf>.
- 25.2 We encourage all partners to report possible violations and breach of our policies at the earliest opportunity and in utmost good faith through our whistle-blower email address transparency@agra.org or the independently managed mailbox AGRA@tip-offs.com or call hotline +27 31 571 5278 or the toll-free lines and other reporting channels provided in the policy.
- 25.3 AGRA further commits that all whistle-blower reports received are investigated in a professional manner and the whistle-blowers (anonymous or otherwise) are protected against retaliation as governed by the policy and applicable laws.

26. Communication and Service Location

Any notice or communication required or permitted to be given in terms of this Agreement shall be valid and effective only if effected in writing, and sent to the other Party by email, hand delivery served upon an authorized employee of the Party being served, or sent by registered post or by recognized courier service, or other method for which the sender has written proof of delivery and addressed to the addresses identified in this clause:

If to AGRA:

P. O Box 66773, Westlands 00800 Nairobi, Kenya

For the Attention of: Fodayinka Esan

Email: FEsan@agra.org

If to CONSULTANT:

Name:

Email:

27. Force Majeure

Neither Party shall be liable for any delay in performing or failure to perform its obligations under this Agreement by reason of national emergency, war, prohibitive governmental regulations, or any other cause beyond the reasonable control of such Party PROVIDED ALWAYS that the Party prevented from performing its obligations under this Agreement shall notify the other Party in writing of its inability at the earliest practicable time.

28. Severability

If any provision of this Agreement is prohibited by law or judged by a court to be unlawful, void or unenforceable, the provision shall, to the extent required, be severed from this Agreement and rendered ineffective as far as possible without modifying the remaining provisions of this Agreement and shall not in any way affect any other circumstances of or the validity or enforcement of this Agreement.

Consultant:

.....

Signature

Date:

In the presence of:

.....

Name

.....

Capacity

.....

Signature

Alliance for a Green Revolution in Africa

.....

Signature

Mr. Folayinka Esan

Chief Operating Officer

Date:

In the presence of:

.....

Proprietary and Confidential

Name

.....

Capacity

.....

Signature

ANNEXURES

ANNEX 1 – TORS

ANNEX 2- TECHNICAL PROPOSAL

ANNEX 3 – FINANCIAL PROPOSAL